

Calendar Line 2

Case Name: *Valdez v. Christopher Ranch, LLC*
Case No.: 21CV392732

This is a representative action arising from alleged wage and hour violations. Plaintiff seeks penalties under the Private Attorneys General Act (“PAGA”), alleging failures to pay overtime and minimum wages, indemnify necessary business expenses, provide meal and rest periods, provide wage statements and maintain records, and timely pay wages after separation.

Plaintiff moves for approval of the PAGA settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

A trial court must review and approve any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529 (*Carrington*); *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Settlement Terms and Administration

A. Provisions of the Settlement

Plaintiff moves for approval of a proposed settlement made on behalf of a group of Aggrieved Employees, defined as:

All persons who worked for Defendant in California as an hourly, non-exempt employee at any time during the applicable PAGA Release Period [December 24, 2020 to the earlier of October 8, 2025, or the date on which the Court

approves the Settlement, or, at Defendant's election, a date prior to either of those dates to avoid triggering the escalator clause].

(Declaration of Kane Moon ("Moon Decl."), Ex. 1 ("Agreement"), ¶¶ 1(d), 1(x).)

Under the terms of the settlement, Defendant will pay a non-reversionary settlement amount of \$849,000. (See Memorandum, pp. 3:5–5:16.) This amount includes attorneys' fees in the amount of \$283,000 (one-third of the gross settlement amount), litigation costs of \$21,104.02, a service award of \$7,500, and settlement administration costs of up to \$7,841. Of the remaining net settlement amount, 75 percent will be paid to the LWDA, and 25 percent (i.e., \$132,388.75) will be distributed to the approximately 1,333 Aggrieved Employees based on the number of pay periods worked. Funds from checks that are not cashed within 180 days from the date of issuance will be transmitted to the Katherine and George Alexander Community Law Center as *cy pres* beneficiary. (Agreement, ¶ 7(d).) The Court approves the *cy pres* designation.

In exchange for the settlement, Aggrieved Employees are deemed to release Defendant and related people and entities from "all PAGA claims alleged in the operative Complaint or LWDA Notice, or which could have been alleged based on the facts, allegations, and legal theories raised in the operative Complaint or LWDA Notice, and which arose during the PAGA Release Period, as applicable to the specific claim." (Agreement, ¶¶ 1(bb), 5.1, 12.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiff contends the PAGA settlement is fair and reasonable. (Memorandum, pp. 9:18–16:22; Moon Decl., ¶¶ 14–34.) Plaintiff's counsel states the parties participated in mediation with Brandon McKelvey, Esq., on August 5, 2025. (Moon Decl., ¶ 17.) Prior to mediation, Defendant provided Plaintiff with informal discovery, including Defendant's policies, data regarding the total number of Aggrieved Employees and pay periods, and an approximate 20 percent sampling of Aggrieved Employees' time and payroll records. (*Id.* at ¶ 15.) Plaintiff provides an analysis Defendant's exposure, assisted by expert analysis of the

time and pay records. (*Id.* at ¶¶ 21–30.) According to this analysis, Defendant faces a total maximum exposure of \$8,496,600 and a risk-adjusted exposure of \$1,062,075. (*Id.* at ¶ 30.)

The gross settlement amount of \$849,000 represents a recovery of approximately 10 percent of Defendant’s estimated total maximum exposure and 80.9 percent of Defendant’s risk-adjusted exposure. Given that trial courts can and do exercise their discretion to reduce the total PAGA penalties imposed, the Court finds that Plaintiff’s counsel has adequately explained the rationale behind the settlement amount. (See *Carrington, supra*, 30 Cal.App.5th at p. 529.)

The Court has reviewed Plaintiff’s written submissions in support of the settlement and is satisfied that the PAGA settlement is fair and may be approved.

C. Enhancement Award, Fees and Costs

Plaintiff seeks an enhancement award in the amount of \$7,500. (Agreement, ¶¶ 1(n), 3(d).) The enhancement award request is not supported by either a declaration from Plaintiff or explanation or argument from counsel. Accordingly, the Court approves an enhancement award in the reduced amount of \$5,000.

Plaintiff’s counsel seeks attorney fees \$283,000 (one third of the gross settlement amount). (Memorandum, pp. 16:23–21:24; Moon Decl. ¶¶ 51–69.) Plaintiff’s counsel submits that the current lodestar in this action is \$152,070, based upon a total of 202.4 hours billed at \$450–950 per hour. (Moon Decl., ¶ 67.) This results in a multiplier of 1.86, which is within the range of multipliers California courts have found to be reasonable. The Court finds the requested fees to be reasonable as a percentage of the total recovery and therefore approves a fee award in the amount requested.

Plaintiff’s counsel seeks reimbursement of \$21,104,02 in litigation costs and provides evidence of costs incurred in that amount. (Memorandum, p. 21:25–28; Moon Decl., ¶ 70 and Ex. 5.) The Court finds the costs to be reasonable and approves reimbursement of costs in the amount requested.

Plaintiff also seeks up to \$7,841.00 in settlement administration costs to Simpluris, Inc. (Memorandum, p. 22:1–8; Agreement, ¶ 3(e); Declaration of Michael Bui on behalf of

Simpluris, ¶ 9.) The Court appoints Simpluris, Inc., as settlement administrator and approves settlement administration costs up to \$7,841, according to proof at the compliance hearing.

III. Conclusion

The Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

Plaintiff shall prepare the order.

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Calendar Line 3

Case Name: *Alvarez v. CEC Entertainment, LLC et al.*
Case No.: 23CV409445

This is a representative action arising from alleged wage and hour violations. Plaintiffs seek penalties under the Private Attorneys General Act (“PAGA”), alleging failures to pay overtime, pay regular rate wages, pay minimum wages, provide meal and rest periods, provide wage statements and maintain records, and timely pay wages during employment and after separation.

Plaintiffs move for approval of the PAGA settlement reached by the parties. The motion is unopposed. As discussed below, the Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

A trial court must review and approve any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Settlement Terms and Administration

A. Provisions of the Settlement

Plaintiffs move for approval of a proposed settlement made on behalf of a group of Aggrieved Employees, defined as: